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File No.: EXP202409887

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure conducted by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: As a result of a complaint filed with the Spanish Agency for Data Protection against the SOCIO-CULTURAL AND HUMANITARIAN ASSOCIATION VIRGEN DE COROMOTO with NIF G76186493 (hereinafter, the complained party), and noting indications of a possible breach of the regulations within the scope of the competencies of the Spanish Agency for Data Protection, actions were initiated under file number EXP202318516.

In accordance with the provisions of Article 65 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (LOPDGDD hereinafter), the complaint was forwarded to the responsible party or to the Data Protection Officer that may have been designated, requesting that they send to this Agency the information and documentation indicated.

The transfer, which was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) by means of electronic notification, was not collected by the responsible party within the availability period, as evidenced by the acknowledgment of receipt in the file, understanding that the procedure was carried out in accordance with the provisions of Articles 43.2 and 41.5 of the LPACAP on December 31, 2023. Although the notification was validly carried out by electronic means, for informational purposes, a copy was sent by postal mail, resulting in the transfer being delivered on January 30, 2024, as evidenced by the acknowledgment of receipt in the file.

On April 4, 2024, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

SECOND: The General Sub-Directorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the investigative powers granted to the supervisory authorities in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the aforementioned LOPDGDD.

In the framework of the investigative actions, a request for information was sent to the complained party twice, regarding the complaint indicated in the first section, requesting that they present to this Agency the information and documentation specified within a period of ten working days.

THIRD: The two notifications of the aforementioned request were carried out in accordance with the rules established in the LPACAP by means of postal notification, being collected by the responsible party on April 26 and June 6, 2024, as evidenced by the acknowledgments of receipt in the file.

FOURTH: Regarding the requested information, the complained party has not sent any response to this Spanish Agency for Data Protection.

FIFTH: On July 22, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the complained party, for the alleged infringement of Article 58.1 of the GDPR, classified under Article 83.5 of the GDPR.

The initiation agreement was collected by the complained party on August 8, 2024, as evidenced by the acknowledgment of receipt in the file.

SIXTH: The aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP, and after the period granted for the submission of allegations had elapsed, it has been confirmed that no allegations have been received from the complained party.

Article 64.2.f) of the LPACAP - a provision of which the complained party was informed in the initiation agreement - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the responsibility attributed, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts that specified the accusation, the infringement of the GDPR attributed to the complained party, and the sanction that could be imposed. Therefore, considering that

the complained party has not made any allegations regarding the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution.

SEVENTH: The complained party is an association established in 2010 and registered in the Association Registry of Las Palmas, of which there is no financial information.

In view of all that has been acted upon, the Spanish Agency for Data Protection considers the following facts to be proven in the present procedure,

PROVEN FACTS

FIRST: The requests for information indicated in the second and third backgrounds were notified in accordance with the provisions of the LPACAP.

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SECOND: The party being claimed has not responded to the information requests made by this Agency within the deadlines granted for such purposes in the context of the investigation proceedings of file EXP202318516.

LEGAL GROUNDS

I

Competence

According to the powers granted to each supervisory authority by Article 58.2 of the GDPR, and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Data Protection Agency will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Obligation Breached

In light of the facts presented, it is considered that the party being claimed has not provided the Spanish Data Protection Agency with the information it requested.

With the aforementioned conduct of the party being claimed, the investigative power conferred on supervisory authorities by Article 58.1 of the GDPR, in this case, the AEPD, has been obstructed.

Therefore, the facts described in the section "Proven Facts" are deemed to constitute an infringement attributable to the party being claimed for violating Article 58.1 of the GDPR, which states that each supervisory authority shall have, among its investigative powers:

"a) to order the controller and the processor and, where applicable, the representative of the controller or the processor, to provide any information required for the performance of its tasks."

III

Classification and Qualification of the Infringement

The facts presented are deemed to constitute an infringement attributable to the party being claimed. This infringement is classified under Article 83.5.e) of the GDPR, which considers as such: "failure to provide access in violation of Article 58, paragraph 1."

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The same article establishes that this infringement may be sanctioned with a fine of up to twenty million euros (€20,000,000) or, in the case of an enterprise, an amount equivalent to four percent (4%) of the total global annual turnover of the previous financial year, opting for the higher amount.

For the purposes of the statute of limitations for infringements, the infringement attributed prescribes after three years, in accordance with Article 72.1 of the LOPDGDD, which qualifies the following conduct as very serious:

“ñ) Failure to provide access to the personal data, information, premises, equipment, and processing means required by the competent data protection authority for the exercise of its investigative powers.”
IV

Imposed Sanction

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. Consequently, the sanction to be imposed must be graduated according to the criteria established in Article 83.2 of the GDPR, and in accordance with the provisions of Article 76 of the LOPDGDD, regarding paragraph k) of the aforementioned Article 83.2 GDPR. Additionally, to ensure a consistent application of the GDPR, the Guidelines 04/2022 issued by the European Data Protection Board on the calculation of fines under the GDPR must be taken into consideration.

In light of the facts presented, it is considered appropriate to impose a sanction on the party being claimed for the violation of Article 58.1 of the GDPR classified under Article 83.5 e) of the GDPR. The sanction to be imposed is an administrative fine of €600.00 (SIX HUNDRED euros).

Therefore, in accordance with the applicable legislation, the Director of the Spanish Data Protection Agency RESOLVES:

FIRST: TO IMPOSE on the SOCIO-CULTURAL AND HUMANITARIAN ASSOCIATION VIRGEN DE COROMOTO, with NIF G76186493, a fine of €600.00 (SIX HUNDRED euros) for an infringement of Article 58.1 of the GDPR, classified under Article 83.5 of the GDPR.

SECOND: TO ORDER the SOCIO-CULTURAL AND HUMANITARIAN ASSOCIATION VIRGEN DE COROMOTO, with NIF G76186493, that in accordance with the investigative power provided in Article 58.1.a) of the GDPR, it shall provide, within ten working days from the date this resolution becomes final and enforceable, the information requested in the requests made in the context of the proceedings numbered EXP202318516 and referred to in the background of this resolution.

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It is warned that failure to comply with the requirements of this body may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its article 83.6, which may lead to the initiation of further administrative sanctioning procedures.

THIRD: NOTIFY this resolution to the SOCIO-CULTURAL AND HUMANITARIAN ASSOCIATION VIRGEN DE COROMOTO.

FOURTH: This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right. The sanctioned party is warned that they must comply with the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, to the restricted account no.

IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed during the executive period.

Upon receipt of the notification and once enforceable, if the enforceability date falls between the 1st and the 15th of each month, inclusive, the deadline for making the voluntary payment will be until the

20th of the following month or the immediate next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the immediate next business day.

In accordance with the provisions of article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with article 48.6 of the LOPDGDD, and in accordance with the provisions of article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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